

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedi, NH-12, Hoshangabad Road, Bhopal-462026

EXAMINATION SCHEME

B.A. L L.B., Semester - V

S. No.	Subject Code	Name of Subject	Marks Allotted						Total Marks	Credit/Contact Hours Per Week			Total Credit
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
01.	BAL-501	Political Science -V (Major)	80	32	20	8	0	0	100	5	1	0	6
02.	BAL-502	Language -II (Optional)	80	32	20	8	0	0	100	5	1	0	6
03.	BAL-503 (A)	Environmental Law	80	32	20	8	0	0	100	5	1	0	6
04.	BAL-504 (A)	Labour & Industrial Law -II	80	32	20	8	0	0	100	5	1	0	6
05.	BAL-505 (A)	Law of Crimes - I (Bhartiya Nyaya Sanhita - 2023)	80	32	20	8	0	0	100	5	1	0	6
06.	BAL-506 (A)	Jurisprudence (Legal Method, Indian Legal System and Basic Theory)	80	32	20	8	0	0	100	5	1	0	6
Total			480	192	120	48	0	0	600	30	6	0	36

L : Lecture

T : Tutorial

P : Practical

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B.A. L.L.B. (HONS.) PART-III SEMESTER - V PAPER – I POLITICAL SCIENCE – V (MAJOR)

UNIT - I National Movement and Process of Constitution Making and Development

1. Indian National Movement,
2. Sources and process of Constitution making
3. Salient features of Indian Constitution
4. Preamble of the Indian Constitution.

UNIT - II Fundamental rights and duties and Election

1. Fundamental rights and duties in Indian Constitutions
2. Election commission and election reforms

UNIT - III Office Bearers and Supreme Court

1. Central Government- President, Parliament, Prime Minister
2. Supreme Court.

UNIT - IV State Government and High Court

1. State Government Governor, State legislature
2. Chief Minister Council of Ministers, High Court.

UNIT - V Miscellaneous

1. Centre-State relations.
2. Political parties-National and Regional.
3. Factors affecting Indian politics-Caste, Religion, Language, Region & Poverty
4. Judicial Reforms.

SELECT BIBLIOGRAPHY:-

1. Dr. J.N. Pandey – Constitutional Law of India, Central Law Agency
2. K.L. Bhatia - Federalism and frictions in centre – State Relations, Deep & Deep Publication Pvt. Ltd.
3. Khanna, H.R. – Making of India's constitution – Eastern Book company
4. Mahajan, Dr. V.D. – Constitutional Law of India – Eastern Book company
5. Kailash Rai – Constitution – Central Law Publication
6. Prof. Narendra Kumar – Constitutional Law of India – Allahabad Law Agency

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B.A. L.L.B. (HONS.) PART-III SEMESTER - V PAPER – II (OPTIONAL –A) LANGUAGE – II (FRENCH-II)

UNIT-I

1. Negatives
2. Colours
3. Expression with avoir verb
4. Forming questions
5. Animals Names in French

UNIT -II

1. Fruit Names in French
2. Usage of Prepositions Au/En
3. Meals in French
4. French Festivals
5. Demonstratif Adjectifs

UNIT-III

1. Adjectifs interrogates
2. Expression with faire verb
3. Possessive adjectives
4. Seasons
5. Time showing in French

UNIT-IV

1. Names of Transportation in French
2. Names of clothings in French
3. Receipt Writing
4. Message Writing

UNIT-V

1. Simple past Tense Part-1
2. Simple past Tense Part-2
3. Simple Future Tense
4. Imperatives
5. Negative expressions.

SELECT BIBLIOGRAPHY:-

1. L NOVEAU SANS FRONTIERS II

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B.A. L.L.B. (HONS.) PART-III SEMESTER - V
PAPER – II (OPTIONAL –B) LANGUAGE – II (HINDI-II)

UNIT- I हिन्दी पत्र लेखन, सार लेखन, व्याकरण एवं अप्रवाद टिप्पणियों की रचना

1. हिन्दी पत्र लेखन एवं सार लेखन
2. कार्यालयीन क्षेत्रों में हिन्दी का प्रयोग
3. शब्द की अन्वयार्ण एवं शब्द के प्रकार

UNIT- II व्याकरण

1. लिंग-विचार, वचन, संघियों
2. क्रिया एवं काल (Verbs and Tenses)
3. प्रत्यय, उपसर्ग
4. स्वर – व्यंजन
5. शब्द की शक्तियों

UNIT- III हिन्दी के प्रमुख पोर्टल

1. हिन्दी के सॉफ्टवेयर
2. भाषा और समज
3. अधिवक्ता एवं फसकार मनोविज्ञान

UNIT- IV अनुवाद

1. हिन्दी से अंग्रेजी में
2. अंग्रेजी से हिन्दी में
3. अधिनियम की धाराओं का सार लेखन
3. दस्तावेजों का अनुवाद

UNIT- V

1. वैश्विक परिदृश्य में हिन्दी
2. कम्प्यूटर (सायबर) में हिन्दी में प्रयोग की कठिनाई एवं उपाय
3. हिन्दी की संविधान में स्थिति
4. निबंध (वैश्विक समस्याओं पर)
5. पूर्व निर्णयों का संक्षिप्तीकरण

SELECT BIBLIOGRAPHY:-

- | | | |
|-------------------------------------|---|---|
| 1. प्रयोजन मूलक हिन्दी की नई भूमिका | — | कैलाश नाथ पाडेंय |
| 2. हिन्दी भाषा और समसामयिकी | — | म.प्र. ग्रंथ अकादमी सम्पादक धनंजय वर्मा |
| 3. प्रयोजनमूलक हिन्दी | — | रघुनंदन प्रसाद शर्मा |
| 4. प्रशासनिक हिन्दी | — | पुष्पा कुमारी |
| 5. अनुवाद संवेदना और सरोकार | — | डॉ. सुरेश सिंघल |
| 6. भाषिक ओदात्य | — | डॉ. त्रिभुवन नाथ शुक्ल |
| 7. हिन्दी कम्प्यूटिंग | — | डॉ. त्रिभुवन नाथ शुक्ल |
| 8. हिन्दी प्रयोग एक शैक्षिक व्याकरण | — | पी.सी. जैन |

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B.A. L.L.B. (HONS.) PART-III SEMESTER - V PAPER – III ENVIRONMENTAL LAW

UNIT-I Concept of Environment and Pollution

1. Environment. Meaning and Concept
2. Pollution- Meaning and Effects of pollution
3. Environmental Pollution (Water, Air and Noise Pollution)
4. Meaning and standards, Culprits and victims , Offences and penalties

UNIT-II International Historical Perspective

1. Stockholm conference
2. Rio conference
3. U.N. declaration on right to development
4. Green house effect and ozone depletion

Unit-III Constitutional Provisions related to Environment

1. Constitution in making- development and property oriented approach
2. Directive Principles, - Status, role and interrelationship with fundamental rights and fundamental duties
3. Fundamental Duties
4. Judicial approach
5. Fundamental Rights (Rights to clean and healthy environment, Environment Vs. Development)
6. Enforcing agencies and remedies (Courts, Tribunal, Constitutional, statutory and judicial remedies)
7. Emerging principles (Polluter pays: public liability insurance, Precautionary principles)
8. Sustainable development

UNIT-IV Environment Protection Measures VIS A VIS Environment Pollution

1. Protection: means and sanctions
2. Protection agencies: power and functions
3. Emerging protection through delegated legislation
4. Hazardous waste
5. Bio- medical waste
6. Judiciary: complex problems in administration of environment justice

UNIT-V Forest and wildlife Protection

1. Greenery conservation laws
2. Forest conservation laws
3. Conservation agencies
4. Prior approval and non-forest purpose
5. Symbiotic relationship and tribal people
6. Judicial approach Deforestation
7. Wild life - Sanctuaries and national parks
8. State monopoly in the sale of wild life and wild life articles - Licensing of zoos and parks
9. Offences against wild life.

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BIO- DIVERSITY

1. Legal control
2. Control of eco-unfriendly experimentation on animals, plants, seeds and micro-organisms

SELECTED BIBLIOGRAPHY:-

1. Armin Rosencranze, et. Al. (eds.) Environmental Law and Policy in India (2000), Oxford
2. R.B. Singh and Suresh Mishra, Environmental Law in India (1996), Concept Pub. Co., New- Delhi
3. Kailash Thakur, Environmental Protection Law and Policy in India (1997), Deep and Deep Pub. New Delhi.
4. Richard L. Riverz et. al. (eds.), environmental Law, The Economy and sustainable Development (2000) Cambridge.
5. Christopher D. Stone, Should Trees Have Standing and other Essays on law, Moral and environment (1996), Oceana.
6. Leelakrishnan, P. et, al. (eds.) Law and Environment (1990), Eastern Lucknow.
7. Leelakrishnan, P. The Environment Law in India (1999), Butterworths India
8. Department of Science and technology, Government of India, Report of the Committee Recommending Legislative Measures and Administrative Machinery for ensuring environment Protection (1980) (Tiwari Committee Report)

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B.A. LL.B. (HONS.) PART-IV SEMESTER - V PAPER – IV LABOUR & INDUSTRIAL LAW – II

UNIT- I

Workmen's Compensation Act, 1923 : Definition of Dependant, workman, Partial Disablement and Total Disablement Employer's Liability for Compensation :-Scope of Arising out of and in the course of Employment. Doctrine of notional extension When employer is not liable. Distribution of Compensation.

Procedure in proceedings before Commissioner. Appeals.

Leading Case :- M.Mackenzie v. I.M. Issak AIR 1970 SC 1006

UNIT – II

The Factories Act 1948: Concept of Factory, Manufacturing Process, Workers and Occupier General Duties of Occupier Measures to be taken in factories for health, safety and welfare of workers.

Working hours of Adults Employment of young person and Children Annual leave with wages.

Additional provisions regulating employment of women in factory

Leading Case :- Steel Authority of India Ltd. v. National Union Waterfront Worker, 2001 SCC (L&S) 1121

UNIT- III

Child Labour (Prohibition And Regulation) Act,1986: Aims and Objects of Act Definition and Scope of Child Labour, Family Prohibition of Children in certain Occupations and Processes Regulation of conditions for work of children

Bonded Labour System (Abolition) Act, 1976: Aims and Objects Concept of Bonded Labour System Extinguishments of Liability to repay bonded debt Implementing Authorities

Leading Case: - M.C. Mehta v. State of Tamil Nadu AIR 1991 SC 417

UNIT- IV

Labour Welfare: Philosophy of Labour Welfare; Historical Development of Labour Welfare Legislation; Health, Safety and Welfare measures under Factories Act, 1948 Welfare of women and Child Labour : Protective provisions under Equal Remuneration Act & Maternity Benefit Act.

Statutory Material

Workmen's Compensation Act, 1923: The Factories Act, 1948 Minimum Wages Act, 1948 Child Labour (Prohibition and Regulation) Act, 1986 Bonded Labour System (Abolition) Act, 1976.

SELECTED BIBLIOGRAPHY:-

Srivastava, S.C.	:	Labour and Industrial Laws
Goswami, V.G.	:	Labour and Industrial Laws
Mishra, S.N.	:	Labour and Industrial Laws of India
Varandani, G.	:	Social Security for Industrial Workers in India
Paul Meenu	:	Labour and Industrial Laws

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B.A. LL.B. (Hons.) PART - III SEMESTER - V

PAPER - V LAW OF CRIMES -I (B.N.S.)

Bharatiya Nyaya Sanhita - 2023

Unit - I

Basic Concepts of Criminal Law

11. Concept and Meaning of Crime
12. Distinction Between Crime and Other Wrongs
13. Classification of Crimes
14. Fundamental Elements of Crime
15. Stages of Crime
16. Parties to Crime
17. Inchoate Offences
18. Corporate Criminal Liability
19. Principles of Criminal Liability
20. Definitions, general explanations, and expressions (Section 2-3)

Unit - II

Punishments and General Exceptions

4. Punishments (Section 4-13)
5. General Exceptions (Section 14-33)
6. Right of Private Defence (Section 34-44)

Unit - III

Abetment, Conspiracy, and Offences Against Women and Children

6. Abetment (Sections 45-60)
7. Criminal Conspiracy (Section 61)
8. Attempt (Section 62)
9. Offences Against Women (Section 63-90)
10. Offences Against Children (Sections 91-97)

Unit - IV

Offences Affecting the Human Body, Property, and reputation.

8. Offences Affecting Life (Sections 98-111)
9. Hurt, Grievous Hurt, wrongful restraint, wrongful confinement (Sections 112-125)
10. Criminal Force and Assault (Sections 126-134)
11. Kidnapping, Abduction, Slavery, and Forced Labour (Sections 135-144).
12. Offences Against Property (301-332)
13. Offences relating to documents and property marks (Section 333-348)
14. Offences of criminal intimidation, insult, annoyance, defamation etc. (Section 349-353)

Unit - V

Offences Against the State, Offences relating to public tranquillity, and Other related offences.

20. Offences Against the State (Sections 145-156)
21. Offences relating to army, navy, and air force (Sections 157-166)
22. Offences Relating to Elections (Sections 167-175).
23. Offences relating to coin, currency notes, bank notes, and government stamps. (Section 176-186).
24. Offences Against Public Tranquility (Section 187-195).
25. Offences Relating to Public Servants and Public Justice (Section 196-267).
26. Offences affecting the public health, safety, convenience, decency, and morals. (Section 268-295)
27. Offences relating to religion (Section 296-300)

Suggested readings:

8. Bare Act, Bharatiya Nyaya Sanhita, 2023.
9. Ratanlal & Dhirajlal's Indian Penal Code (Butterworths Wadhwa, Nagpur) (2021)
10. K. D. Gaur, A text Book on the Indian Penal Code (Universal Delhi) (2023).
11. P. S. Achuthan Pillai, Criminal Law (Eastern Book Co.) (2023).
12. B. M. Gandhi, Indian Penal Code (Eastern Book Co.) (2023)
13. S. N. Mishra, Indian Penal Code, Central Law Publication (2020)
14. Prof. Vageshwari Deswal & Adv. Saurabh Kansal, Taxmann's Bharatiya Nyaya Sanhita 2023 (Taxmann) (2024).

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B.A. L.L.B. (HONS.) PART-III SEMESTER - V PAPER – VI JURISPRUDENCE (LEGAL METHOD, INDIAN LEGAL SYSTEM AND BASIC THEORY)

UNIT-I Introduction

1. Definition of the term Jurisprudence
2. Definition of Law, kinds of law
3. Justice and its kinds
4. Sources of Law (Elementary study)

UNIT-II Schools of Jurisprudence

1. Natural law school
2. Analytical school, Imperative Theory of law, Pure Theory of law
3. Historical school
4. Sociological school
5. Realistic school
6. The ancient : The concept of 'DHARMA'
7. Feminist – Schools of Jurisprudence

UNIT III Sources of Law

1. Legislation
2. Precedents: concept of stare decisis
3. Customs

UNIT-IV Legal Rights: the Concept

1. Rights: kinds, meanings
2. Duty: meaning and kinds
3. Relation between right and duty

PERSONS

1. Nature of personality
2. Status of the unborn, minor, lunatic, drunken and dead persons
3. Corporate personality : Dimension of the modern legal personality: Legal personality of non-human beings

UNIT-V Possession and Ownership: the Concept

1. Kinds of possession, Theories of Possession
2. Kinds of ownership, Theories of Ownership
3. Difference between possession and ownership
4. Title

LIABILITY

1. Condition of imposing liability (Wrongful Acts)
2. Strict liability
3. Vicarious liability

OBLIGATION

1. Nature and kind
2. Difference between : Being obliged and having obligation (HLA Hart)

SELECT BIBLIOGRAPHY:-

1. Bodenheimer, Jurisprudence – The Philosophy and Method of Law (1996) Universal. Delhi.
2. Fitzgerald, (ed) Salmond on Jurisprudence (1999) Tripathi. Bombay
3. W. Friedmann. Legal Theory (1995) Universal. Delhi.
4. V.D. Mahajan, Jurisprudence and Legal Theory (1996 reprint), Eastern Lucknow.
5. M.D.A. Freeman(ed.). Lloyd's introduction to Jurisprudence. (1994), Sweet and Maxwell
6. Paton G.W. Jurisprudence (1972) Oxford, ELBS
7. H.L.A. Hart, The concepts of Law (1970) Oxford, ELBS
8. Roscoe Pound, Introduction to the Philosophy of Law (1998 reprint) Universal Delhi
9. Dias, S.N. Jurisprudence: A Study of Indian Legal Theory (1985), Metropolitan New Delhi.